

22STLC01662 22STLC01662

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 22STLC01662 Hearing Date: September 21, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Pacific Specialty Insurance Company's Motion to Vacate Acknowledgment of Satisfaction of Judgment (Partial) as to Defendant Brittany Combs is granted.

Analysis:

On March 14, 2022, Plaintiff Pacific Specialty Insurance Company ("Plaintiff") filed this action against Defendant Oscar Nava ("Defendant Nava"). Defendant Nava filed an Answer on April 26, 2022, and a Cross-Complaint against Brittany Combs on July 24, 2023. On August 3, 2023, Plaintiff added Brittany Combs to the Complaint as a defendant ("Defendant Combs"). Plaintiff dismissed Defendant Nava from the Complaint on July 25, 2024, and obtained default judgment against Defendant Combs on August 13, 2024. Plaintiff then filed an Acknowledgment of Satisfaction of Judgment (Partial) on September 9, 2024, with respect to Defendant Combs.

Plaintiff

filed and served the instant Motion to Vacate Acknowledgment of Satisfaction of Judgment (Partial) as to Defendant Brittany Combs on August 10, 2026. No opposition has been filed to date.

Discussion

Plaintiff

moves pursuant to case law to vacate the Acknowledgement of Satisfaction of

Judgment (Partial) on account of its error. "It is, of course, the law that a satisfaction of judgment which has been filed and entered may be set aside by appropriate proceedings and for proper cause." (Remillard Brick Co. v. Dandini (1950) 98 Cal.App.2d 617, 622.) Proper cause includes fraud, undue influence, and mistake. (Remillard Brick Co. v. Dandini (1950) 98 Cal.App.2d 617, 622.)

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Motion is supported by the declaration of Plaintiff's counsel, who attests that Plaintiff settled its claims against Defendant Nava for \$5,000.00 but inadvertently filed the Acknowledgement of Satisfaction of Judgment (Partial) as to Defendant Combs. (Motion, Tapper Decl., ¶¶4-6.) Plaintiff discovered the error during its collection efforts against Defendant Combs. (Id. at ¶7.) Based on the incorrect filing of the Acknowledgement of Satisfaction of Judgment (Partial), the Court grants the request to vacate it.

Conclusion

Plaintiff Pacific Specialty Insurance Company's Motion to Vacate Acknowledgment of Satisfaction of Judgment (Partial) as to Defendant Brittany Combs is granted.

Moving party to give notice.